

Amendment No. 8 to HB0819

Williams
Signature of Sponsor

AMEND Senate Bill No. 1369

House Bill No. 819*

by inserting the following immediately preceding the effective date section and redesignating the effective date section accordingly:

SECTION __. Tennessee Code Annotated, Title 68, Chapter 11, Part 2, is amended by adding the following as a new section:

(a) As used in this section, "acute care hospital" means a hospital with a primary focus on patients with an average length of stay of twenty-five (25) days or less.

(b) In addition to licensing standards and requirements applicable to all acute care hospitals, the commission is authorized to adopt by rule licensing standards as described in this subsection (b) for acute care hospitals licensed on or after July 1, 2030. Such standards must include, at a minimum, requirements that an acute care hospital:

(1) Participate in the TennCare medical assistance program and provide an amount of care to patients who are TennCare enrollees that is comparable to similarly situated acute care hospitals; and

(2) Provide an amount of charity care that is comparable to similarly situated acute care hospitals.

(c) In developing licensing standards pursuant to this section, the commission shall complete a report by January 1, 2031, that includes a compilation of payor mix information by geographical area and type of medical treatment or procedure. The payor mix information must include percentages of patients who are TennCare enrollees, medicare patients, or charity care patients. The report must be developed with participation from and input of various stakeholders, including existing acute care

hospitals, physicians, nonprofit hospitals, rural hospitals, investor-owned hospitals, and others at the discretion of the commission.